

See also: The Twelve Tables 30 ■ Aristotle and natural law 32–33 ■ The *Lex Aquilia* 34 ■ The origins of canon law 42–47
 ■ Gratian's *Decretum* 60–63 ■ Thomas Aquinas 72–73



Alexander, made Ulpian prefect in command of Rome's Praetorian Guard. However, Ulpian clashed with the soldiers, and in 223 CE, they mutinied and killed him.

Priests of law

Ulpian had an exalted view of Roman law, which he considered to be universal, rational, and based on what Aristotle described as “natural law.” Ulpian perceived law as “the art of goodness and fairness,” of which “we [jurists] are deservedly called the priests. For we cultivate the virtue of justice and claim awareness of what is good and fair.”

The above lines form part of a definition of law by Ulpian that was chosen as the opening text of the *Digesta* (*Digest*), a compilation of the interpretations of respected jurists commissioned in the 6th century by Emperor Justinian I. In order to

Ulpian ranked as one of Rome's five most revered jurists, along with Gaius, Papinian, Paulus, and Modestinus. He is depicted here in a French work published in 1584.

rationalize Roman law, Justinian directed his legal experts to assess the existing, contradictory body of legislation and produce a definitive version. The result was the *Codex* (*Code*), a comprehensive collection of imperial laws published in 529 CE. This was followed by the *Digest* and the *Institutiones* (*Institutions*), a textbook for law students, both published in 533 CE.

Much of Ulpian's writing survives in excerpts included in the *Digest*. In preparing the work, the compilers often chose Ulpian as their preferred authority—not only because he was one of the last great jurists and had studied the earlier ones, but also because of the clarity and elegance of his writing, which makes up one-third of the whole text.

The codified system of legal principles expressed in these works of Justinian is a defining feature of

Law is ... the science of what is right and what is unjust.

Ulpian the Jurist

Roman law. In this respect, Roman law forms the basis of civil law, the system widely used today.

Renaissance revival

Despite his prominence in the pages of the *Digest*, Ulpian was largely forgotten until around 1070 CE, when old manuscripts were rediscovered in Italy. Later, in 1583, the *Digest*, the *Code*, and the *Institutiones* were printed together under the title *Corpus juris civilis* (*Body of Civil Law*) and became the basis for legal education across Western Europe. ■



Ulpian was assassinated by the Praetorian Guard in the imperial palace. They struck in the presence of Emperor Severus Alexander and his mother and close adviser, Julia Mamaea.